

23STCV28732 23STCV28732

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 23STCV28732 Hearing Date: September 4, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September

4, 2026 TRIAL DATE: October

5, 2026

CASE: Casetta Signater

v. Keppel Union School District

CASE NO.: 23STCV28732

DEFENDANT

KEPPEL UNION SCHOOL DISTRICT'S MOTION TO COMPEL THE DEPOSITION OF THE PERSON

MOST KNOWLEDGABLE FOR WONDERFUL COLLEGE PREP ACADEMY – H.R. AND REQUEST FOR PRODUCTION OF DOCUMENTS

PLAINTIFF'S MOTION TO COMPEL FIVE

PROPERLY NOTICED DEPOSITIONS

Plaintiff Casetta Signater ("Plaintiff") brings this

employment action against defendant Keppel Union District School ("Defendant"). Before the court are two motions: (1) Defendant's

motion to compel the deposition of the person most knowledgeable for Wonderful

College Prep Academy – H.R.; and (2) Plaintiff's Motion to Compel Five Properly

Noticed Depositions.[1] The court addresses these motions in turn.

I. DISCUSSION RE
MOTION TO COMPEL PMK DEPOSITION

A. Background

On June 11, 2026, Defendant filed a motion to compel Plaintiff's former employer, Wonderful College Prep Academy – H.R. ("Wonderful"), to produce its PMK for deposition and to reopen discovery for this purpose. Defendant does not request sanctions.

On June 17, 2026, Plaintiff filed an opposition. Plaintiff does not request sanctions.

On June 24, 2026, Defendant filed a reply.

On July 1, 2026, the court denied the motion without prejudice for Defendant's failure to serve the nonparty deponent.

On July 8, 2026, Defendant re-filed the motion with proof of service of the motion on the nonparty deponent.

The re-filed motion was unopposed.

The motion was heard on August 27, 2026. In advance of the hearing, the court issued a tentative ruling to grant the motion. At the hearing, Plaintiff expressed surprise that this motion was on calendar. The court took the matter under submission.

On August 28, 2026, the court issued its ruling. To ensure Plaintiff had a full opportunity to respond, the court continued the hearing on this motion to September 4, 2026, at 8:30 a.m. Plaintiff was directed to file and serve its opposition by 4:30 p.m. on August 31, 2026.

On August 31, 2026, Plaintiff filed her opposition, albeit after the deadline of 4:30 p.m.

On September 1, 2026, Defendant filed a reply.

B. Legal Standard

A party is entitled to obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the action. (Code of Civil Procedure § 2017.010.) A party seeking discovery from a person who is not a party to the action may obtain discovery by oral deposition, written deposition, or deposition subpoena for production of business records. (Code Civ. Proc., § 2020.010.)

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If the nonparty deponent is an organization, to any officer, director, custodian of records, or to any agent or employee authorized by the organization to accept service of a subpoena. (Code Civ. Proc., § 2020.220(b)(1).) Personal service of any deposition subpoena is effective to require the personal attendance and testimony of the nonparty deponent, if the subpoena so specifies. (Code Civ. Proc., § 2020.220(c)(1).)~~~~~

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"A written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail or electronic service at an address or electronic service address specified on the deposition record." (Cal. Rules of Court, rule 3.1346.)~~~

C. Application

The court finds good cause exists to reopen discovery and to compel the deposition of Wonderful's PMK. Defendant properly served Wonderful with a deposition subpoena and, as spelled out in each of Defendant's reply briefs, Plaintiff failed to serve timely objections to the subpoena. Specifically, Plaintiff failed to personally serve his written objection no later than 3 days before the noticed deposition date. Moreover, given that the deposition seeks relevant information, and the court has reopened discovery to allow Plaintiff to complete five depositions past the discovery deadline, the court will grant the motion. The balance of Plaintiff's arguments are rejected for the reasons stated in Defendant's reply.

D. Conclusion

The motion
is GRANTED. Wonderful is ordered to
produce its PMK for deposition within 15 days of this order.

III. DISCUSSION

RE MOTION TO COMPEL FIVE DEPOSITIONS

A. Background

On June 8, 2026, Plaintiff filed a motion to compel
Defendant to produce the following individuals for deposition: (1)
Superintendent Priyadarshini Darbari ("Darbari") for the continuation and
completion of her PMK deposition; (2) Ms. Darbari in her individual capacity;
(3) Defendant's PMK on Board of Education communications, deliberations, and
decisions relating to the non-reemployment and termination of Plaintiff; (4)
Dr. Jacqueline Cardenas; and (5) Dr. Terry Walker. Plaintiff also
requests that the court extend the discovery cut-off for the exclusive purpose
of taking the foregoing depositions and an award of sanctions.

On June 17, 2026, Defendant filed an opposition.
Defendant requests sanctions against Plaintiff and her counsel.

On June 24, 2026, Plaintiff filed a reply.

On July 1,
2026, the court heard argument and thereafter granted the motion.

On
August 27, 2026, the parties appeared for a hearing on a different motion. At the hearing, Plaintiff's counsel raised
for the first time that the court had addressed only four of the five requested
deposition sin Plaintiff's motion to compel five properly noticed
depositions. The court stated it would
revisit the issue in advance of the hearing on September 4, 2026.[2]

Having
considered the issue, the court issues this clarification of the court's July
1, 2026 order.

B. Discussion

Plaintiff's

June 8 motion requested, in relevant part, depositions of Ms. Darbari in her individual capacity and as Defendant's PMK.

In the July 1, 2026 ruling, Defendant was ordered to produce Ms. Darbari, Dr. Walker, Ms. Cardenas, and Defendant's PMK for Board of Education communications, deliberations, and decisions relating to the non-reemployment and termination of Plaintiff for deposition within 30 days of the order. (Minute Order, 07/01/26.) In the court's view, the order encompassed deposition of Ms. Darbari, individually and as Defendant's PMK.

C. Conclusion

For

the avoidance of doubt, the court now clarifies the July 1, 2026 order as follows:

Defendant is ordered to produce Ms. Darbari, individually and as Defendant's PMK, Dr. Walker, Ms. Cardenas, and Defendant's PMK for Board of Education communications, deliberations, and decisions relating to the non-reemployment and termination of Plaintiff for deposition within 30 days of the July 1, 2026 order.

IV. DISPOSITIONS

1. The motion to compel

PMK deposition is Granted. Wonderful is ordered to produce its PMK for deposition within 10 days of this order.

2. The court's July 1, 2026 order in connection

to Plaintiff's motion to compel five properly noticed depositions is clarified as follows:

Defendant

is ordered to produce Ms. Darbari, individually and as Defendant's PMK, Dr. Walker, Ms. Cardenas, and Defendant's PMK for Board of Education communications, deliberations, and decisions relating to the non-reemployment and termination of Plaintiff for deposition within 30 days of the July

1, 2026 order. The court will hear from the parties as to whether these depositions have taken place.

Moving
parties to give notice, unless waived.

Dated: September 4,
2026

Brock T. Hammond

Judge of the Superior Court

[1] As discussed in Section III.B. herein,
the court clarifies its July 1, 2026 ruling which disposed of that motion.

[2] Plaintiff should have sought clarification at the
July 1, 2026 hearing, especially given that the court issued a tentative ruling
in advance of that July 1 hearing date.